

**BEFORE THE
FEDERAL MARITIME COMMISSION**

Docket No. 11-12

**KAWASAKI KISEN KAISHA, LTD.;
NIPPON YUSEN KAISHA;
UNITED ARAB SHIPPING COMPANY (S.A.G.); and
YANG MING MARINE TRANSPORT CORPORATION,**

COMPLAINANTS

v.

THE PORT AUTHORITY OF NEW YORK AND NEW JERSEY

RESPONDENT

**STATUS REPORT FROM THE PORT AUTHORITY
OF NEW YORK AND NEW JERSEY**

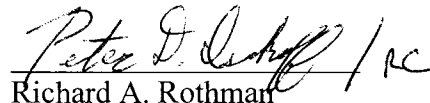
Respondent, The Port Authority of New York and New Jersey (the “Port Authority”), respectfully submits this Status Report pursuant to Your Honor’s Fourth Revised Scheduling Order, dated June 20, 2013 (“Fourth Revised Scheduling Order”) and Order on Motions for Final Judgment and to Amend Complaint and Order to File Status Report, dated September 5, 2013 (“Sept. 5 Order”).

At the time of filing this report, despite having made several inquiries of Complainants’ counsel over the course of the past seven days, the Port Authority has not been advised as to which of the options set forth in the Sept. 5 Order Complainants have chosen, *i.e.*, whether Complainants have decided (i) to provide the required discovery immediately; (ii) to withdraw

the Complaint; or (iii) to be subject to having this case dismissed because of their discovery violations. *See* Sept. 5 Order at 5. We can, however, report that since Your Honor's Sept. 5 Order, Complainants have produced no documents, made no effort to arrange for the compelled depositions, nor otherwise remedied their long-standing discovery failures.

Dated: September 16, 2013

Respectfully submitted,

A handwritten signature in black ink, appearing to read "Peter D. Isakoff / rc".

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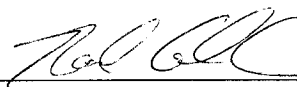
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CERTIFICATE OF SERVICE

I hereby certify that on this 16th day of September, 2013, a copy of the foregoing document was served on the following by e-mail and Federal Express:

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